

DOCKET NO. FSTCV598295098-S

SUPERIOR COURT

GASTON, SARAH, AKA SARAH H
GASTON

JUDICIAL DISTRICT OF STAMFORD
AT STAMFORD

Counterclaimant,

V.

ZWICKER & ASSOCIATES, P.C.,
Counterclaim Defendant.

04/02/2026

DEFENDANT'S COUNTERCLAIM

PRELIMINARY STATEMENT

Counterclaimant SARAH H GASTON brings this Counterclaim against ZWICKER & ASSOCIATES PC, 1699 KING STREET, SUITE 207, ENFIELD, CT, 06802 ("Counterclaim Defendant") for its unlawful, deceptive, and unfair conduct in pursuing a collections action against Counterclaimant for a debt that had been fully satisfied prior to the commencement of said action. Counterclaim Defendant's conduct violated the Fair Debt Collection Practices Act, 15 U.S.C. § 1692 et seq. ("FDCPA"), the Connecticut Unfair Trade Practices Act, Conn. Gen. Stat. § 42-110b et seq. ("CUTPA"), and caused Counterclaimant concrete monetary harm and substantial reputational damage. Counterclaimant seeks statutory damages, actual damages, punitive damages, attorney's fees, costs, and all other relief the Court deems just and proper.

PARTIES

1. Counterclaimant SARAH H GASTON is an individual residing in the State of Connecticut at 160 Bedford Road, Greenwich, Connecticut, 06831.

2. Counterclaim Defendant ZWICKER & ASSOCIATES, P.C. is a Delaware corporation with a principal place of business at 1699 King Street, Suite 207, Enfield, Connecticut, 06802, and is licensed and/or operating as a debt collector within the State of Connecticut. At all times relevant herein, Counterclaim Defendant was engaged in the collection of consumer debts and constitutes a "debt collector" as defined by 15 U.S.C. § 1692a(6).

JURISDICTION AND VENUE

3. This Court has subject matter jurisdiction over the FDCPA claim pursuant to 15 U.S.C. § 1692k(d), which confers jurisdiction on any court of competent jurisdiction, including state courts.

4. This Court has subject matter jurisdiction over the CUTPA claim pursuant to Conn. Gen. Stat. § 42-110g(a).

5. Venue is proper in this judicial district as the acts and omissions giving rise to this Counterclaim occurred within this district and Counterclaimant resides herein.

FACTUAL ALLEGATIONS

6. At some point prior to April 1, 2024, Counterclaimant incurred a consumer debt (the "Debt") originally owed to AMERICAN EXPRESS NATIONAL BANK ("Original Creditor"), bearing accounts number ending in 8007 and 9000.

7. Counterclaimant fully satisfied the Debt by payment to Counterclaim Defendant on or about February 3, 2025, in the amount of \$293,038.82. A record of said payment, including a copy of the deposited bank check, a copy of the signed Notice of Debt Payment - Paid-in-Full letter sent by Counterclaim Defendant to Counterclaimant's counsel, and sworn affidavit from an executive at Counterclaim Defendant's banking partner acknowledging the clearance of payment via said bank check, was retained by Counterclaimant.

8. Notwithstanding full satisfaction of the Debt, Counterclaim Defendant subsequently acquired or purported to acquire the Debt, or a claim thereto, and initiated additional collection efforts against Counterclaimant.

9. At the time Counterclaim Defendant continued to pursue the Collections Action, the Debt had been fully paid and no amount was legally owed by Counterclaimant.

10. Counterclaim Defendant either knew, or through the exercise of reasonable diligence should have known, that the Debt had been satisfied prior to continuing the Collections Action.

11. Counterclaim Defendant failed to conduct adequate investigation to verify the satisfied Debt before continuing suit, advancing collections efforts (including frequent and harassing telephone contact with the Counterclaimant), and failing to take the required steps to alert credit agencies, credit reporting platforms, and jurisdictional databases of the fact that the Debt had been paid in full (PIF) and was no longer an outstanding claim.

12. As a direct and proximate result of the Collections Action, Counterclaimant was compelled to retain additional legal counsel and incur additional attorney's fees and costs to defend against a legally baseless claim.

13. As a further direct and proximate result of the Collections Action, Counterclaimant suffered damage to his/her credit profile, including adverse tradeline reporting attributable to the disputed Debt, causing quantifiable harm to Counterclaimant's creditworthiness and financial reputation.

14. Counterclaimant suffered additional reputational harm within her community and professional sphere as a result of being named as a defendant in a court proceeding predicated on a false debt obligation.

15. Counterclaimant experienced emotional distress, anxiety, and loss of time in connection with the necessity of defending the Collections Action.

17. On April 3, 2025, this Court dismissed Counterclaim Defendant's Complaint with prejudice, confirming the legal nullity of Counterclaim Defendant's claims against Counterclaimant (103.00; Order No. 094892; "Motion for Dismissal with Prejudice - Granted").

CAUSES OF ACTION

COUNT ONE

Violation of the Fair Debt Collection Practices Act

15 U.S.C. § 1692e — False, Deceptive, or Misleading Representations

18. Counterclaimant hereby incorporates by reference all preceding paragraphs as if fully set forth herein.

19. The FDCPA prohibits a debt collector from using "any false, deceptive, or misleading representation or means in connection with the collection of any debt." 15 U.S.C. § 1692e.

20. Specifically, § 1692e(2)(A) prohibits the false representation of "the character, amount, or legal status of any debt."

21. Specifically, § 1692e(10) prohibits "the use of any false representation or deceptive means to collect or attempt to collect any debt."

22. By pursuing a filing the Collections Action was asserting that Counterclaimant owed a debt that had been fully satisfied, Counterclaim Defendant falsely represented the character, amount, and legal status of the purported Debt in violation of 15 U.S.C. § 1692e(2)(A) and § 1692e(10).

23. Counterclaim Defendant's representations — made in a court filing of record — that a valid, outstanding debt existed were false and were made in connection with the collection of a consumer debt.

24. As a result of Counterclaim Defendant's violations of § 1692e, Counterclaimant is entitled to:

- (a) Actual damages pursuant to 15 U.S.C. § 1692k(a)(1), including but not limited to attorney's fees incurred in defense of the Collections Action, credit-related damages, and lost time;
- (b) Statutory damages in an amount up to \$1,000,000.00 pursuant to 15 U.S.C. § 1692k(a)(2)(A);
- (c) Attorney's fees and costs pursuant to 15 U.S.C. § 1692k(a)(3).

COUNT TWO

Violation of the Fair Debt Collection Practices Act

15 U.S.C. § 1692f — Unfair or Unconscionable Means

25. Counterclaimant hereby incorporates by reference all preceding paragraphs as if fully set forth herein.

26. The FDCPA prohibits a debt collector from using "unfair or unconscionable means to collect or attempt to collect any debt." 15 U.S.C. § 1692f.

27. The pursuit of legal proceedings to collect a debt that is not legally owed, without adequate mid-suit verification, constitutes an unfair and unconscionable means of debt collection.

28. Counterclaim Defendant's conduct in pursuing suit on a paid and extinguished debt subjected Counterclaimant to the coercive pressure, expense, and reputational burden of civil litigation without legal justification.

29. As a result of Counterclaim Defendant's violations of § 1692f, Counterclaimant is entitled to the same relief set forth in paragraph 24 above.

COUNT THREE

Violation of the Connecticut Unfair Trade Practices Act

Conn. Gen. Stat. § 42-110b

30. Counterclaimant hereby incorporates by reference all preceding paragraphs as if fully set forth herein.

31. CUTPA provides that "[n]o person shall engage in unfair methods of competition and unfair or deceptive acts or practices in the conduct of any trade or commerce." Conn. Gen. Stat. § 42-110b(a).

32. Debt collection constitutes "trade or commerce" within the meaning of CUTPA. *Emerson Radio Corp. v. Orion Sales, Inc.*, 253 Conn. 484 (2000); *Jacobs v. Healey Ford-Subaru, Inc.*, 231 Conn. 707 (1995).

33. Connecticut courts apply the FTC cigarette rule in evaluating CUTPA claims, considering: (a) whether the practice offends public policy; (b) whether it is immoral, unethical, oppressive, or unscrupulous; and (c) whether it causes substantial injury to consumers. *Web Press Services Corp. v. New London Motors, Inc.*, 203 Conn. 342 (1987).

34. Counterclaim Defendant's conduct satisfies all three prongs:

- (a) Initiating legal proceedings on a falsely asserted debt offends established public policy, including that reflected in the FDCPA;
- (b) Pursuing litigation on a paid debt without adequate verification is unethical, oppressive, and unscrupulous conduct that exploits the coercive nature of legal process;
- (c) Counterclaimant suffered substantial injury including legal fees, credit damage, reputational harm, and emotional distress.

35. A violation of the FDCPA constitutes a per se or strongly persuasive predicate violation of CUTPA under Connecticut law. *Greer v. AFNI, Inc.*, 2009 WL 1507570 (D. Conn. 2009).

36. Counterclaimant suffered an ascertainable loss of money or property within the meaning of Conn. Gen. Stat. § 42-110g(a), including but not limited to attorney's fees, costs of defense, and quantifiable credit and reputational harm.

37. As a result of Counterclaim Defendant's violations of CUTPA, Counterclaimant is entitled to:

- (a) Actual damages pursuant to Conn. Gen. Stat. § 42-110g(a);
- (b) Punitive damages pursuant to Conn. Gen. Stat. § 42-110g(a), based on the reckless, willful, or wanton nature of Counterclaim Defendant's conduct;
- (c) Attorney's fees and costs pursuant to Conn. Gen. Stat. § 42-110g(d).

COUNT FOUR

Common Law — Abuse of Process

38. Counterclaimant hereby incorporates by reference all preceding paragraphs as if fully set forth herein.

39. To state a claim for abuse of process under Connecticut law, a plaintiff must allege: (1) that the defendant used legal process against the plaintiff; (2) primarily to accomplish a purpose for which that process was not designed; and (3) resulting harm to the plaintiff. *Mozzochi v. Beck*, 204 Conn. 490 (1987).

40. Counterclaim Defendant used the legal process of civil litigation — a mechanism designed to adjudicate legitimate disputes — as an instrument of coercive debt collection on a debt it knew or should have known was extinguished.

41. The Collections Action was not pursued, after February 3, 2025, to obtain a legitimate judicial resolution but rather to leverage the burden and expense of litigation to extract additional payment from Counterclaimant on a false claim.

42. Counterclaimant suffered direct harm as a result, including attorney's fees, reputational injury, credit damage, and emotional distress.

PRAYER FOR RELIEF

WHEREFORE, Counterclaimant [Defendant's Name] respectfully requests that this Court enter judgment in favor of Counterclaimant and against Counterclaim Defendant [Collections Agency] as follows:

- A. Actual damages in an amount to be proven at trial, including attorney's fees incurred in defense of the Collections Action, credit-related monetary damages, and consequential losses;

B. Statutory damages of \$1,000,000.00 pursuant to 15 U.S.C. § 1692k(a)(2)(A);

C. Punitive damages pursuant to Conn. Gen. Stat. § 42-110g(a);

D. Attorney's fees and costs pursuant to 15 U.S.C. § 1692k(a)(3) and Conn. Gen. Stat. § 42-110g(d);

E. An order directing Counterclaim Defendant to confirm submission of correction and/or deletion requests to all consumer reporting agencies to which it furnished adverse information regarding the alleged Debt, including ongoing monitoring of Counterclaim Defendant's standing as it relates to relevant impacted credit score, credit record, payment history and the like;

F. Such other and further relief as this Court deems just, equitable, and proper.

JURY DEMAND

Counterclaimant hereby demands a trial by jury on all issues so triable.

Respectfully submitted,

COUNTERCLAIMANT, SARAH H GASTON

By: 

Jeffrey A. Brill, Esq. Juris #719438
Skadden, Arps, Meager, Slate & Flom, LLP
1 Manhattan West, 395 Ninth Avenue
New York, NY 10001
(212) 735-3000

CERTIFICATION

I hereby certify that a copy of the foregoing was served upon Counterclaim Defendant's counsel of record, Robert Ross, Esq. Juris #39402, Zwicker & Associates, PC, 1699 King Street, Suite 207, Enfield, Connecticut, 06802, via electronic service / first-class mail / hand delivery] on 03/03/2025.

ROBERT M. ROSS, ESQ.